IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-512
CP (CAA) No.-42/230/232/ND/2022

IN THE MATTER OF:
Lifestar Pharma Pvt. Ltd. & Ors. And Mankind Pharma Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 14.02.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. Ravi Sharma, Mr. Anubhav Rastogi, Proxy Counsel
For the Respondent	:
For the RD	: Ms. Priyadarshini Dewan, Ms. Niharika Tanwar
For the IT Deptt.	: Mr. Abhishek Maratha, Sr. St. Counsel, Mr. Pratyaksh Gupta, Jr. St. Counsel

ORDER

Heard the submissions made by Ld. Counsel for the Petitioner. This is a 2nd motion amalgamation application filed by the Petitioners jointly. The reports of RD and OL are on record. In response to the observations made by Income Tax Department, the transferor company 1 and 2 have submitted an indemnity bond denoting the fact that the executor of the affidavit cum indemnity bond indemnifies the Government of India (MoF) Income Tax Department and keep indemnified against the Income Tax Department and also ensure that the books of account will be kept intake for easy facilitation of the tax assessment. Therefore, order in this matter is **reserved.**

S/d-
(DR. BINOD KUMAR SINHA)
MEMBER (T)

S/d-
(P.S.N PRASAD)
MEMBER (J)

Amit Tiwari
14.02.2023